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Statement from Los Angeles Continuum of Care on Ninth Circuit Decision to Preserve Community Control of Homelessness Funding

Today, the Ninth Circuit Court of Appeals denied HUD's request to stay a federal court order blocking the agency from taking control of Los Angeles's homelessness funding amid ongoing proceedings. The [decision](#) preserves the Los Angeles Continuum of Care (LA CoC)'s ability to collaboratively oversee that funding according to local priorities as HUD's appeal continues.

"The Ninth Circuit's ruling recognizes the importance of the Continuum of Care and LA's right to set its own priorities for addressing homelessness. HUD's attempts to impose its agenda on our community have created uncertainty and chaos in Los Angeles, threatening our ability to provide stable care to thousands of people experiencing homelessness. Today's decision restores order and stability while the LA CoC prepares for the region's next chapter," **said Ben Kay, Chair of the LA CoC Board.**

The decision follows a preliminary injunction issued last month in *Los Angeles Homeless Services Authority v. Trump*. The preliminary injunction blocked HUD from suspending LAHSA and preventing LA CoC from coordinating the region's consolidated application for federal funding for housing, shelter, and services in Los Angeles. HUD appealed the ruling and asked the Ninth Circuit to delay the injunction while its appeal proceeds. The Ninth Circuit denied that request today, writing that HUD had failed to consider the harm that abruptly removing LA's funding partner would cause in the middle of the 2026 federal funding competition.

"The Ninth Circuit recognized that HUD cannot simply override priorities set by local governments, service providers, people with lived experience, and other community stakeholders by seizing the authority Congress has entrusted to the Continuum of Care. HUD's attempt to upend the funding process while it was already underway would have caused massive harm to the Los Angeles region and the thousands of people who rely on these critical resources," **said Shayla Myers, legal counsel for LA CoC and Director of Impact Litigation & Policy at the Legal Aid Foundation of Los Angeles.**

In compliance with last month's preliminary injunction, LA CoC is moving forward with a competitive process to identify who will ultimately take over key responsibilities currently handled by LAHSA, including serving as Collaborative Applicant for the 2027 federal funding competition, managing the Homeless Management Information System (HMIS), overseeing the Coordinated Entry System (CES), and leading the Homeless Count. More information about the process is on the LA CoC's website, www.losangelescoc.org.

The Los Angeles Continuum of Care is represented in this litigation by the [Legal Aid Foundation of Los Angeles](#), [Public Counsel](#), and [Steptoe LLP](#). More information on the case can be found at: <https://publiccounsel.org/our-cases/los-angeles-homeless-services-authority-v-trump/>.